

Tentative Rulings for September 15, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402536	FALCON VS CNRC, LLC	MOTION TO BIFURCATE ON COMPLAINT OF TERESA FALCON BY CNRC, LLC, BRIUS MANAGEMENT CO., INC., BRIUS HEALTHCARE, LLC, BRIUS, LLC

Tentative Ruling: No tentative ruling. Hearing is continued to Friday, February 5, 2027 to be heard at time of jury trial as part of motions in limine and other required briefings per local rule 3401 order. This hearing is for punitive damages.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2402536	FALCON VS CNRC, LLC	MOTION TO BIFURCATE ON COMPLAINT OF TERESA FALCON BY CNRC, LLC, BRIUS MANAGEMENT CO., INC., BRIUS HEALTHCARE, LLC, BRIUS, LLC

Tentative Ruling: No tentative ruling. Hearing is continued to Friday, February 5, 2027 to be heard at time of jury trial as part of motions in limine and other required briefings per local rule 3401 order. This hearing is for alter ego liability.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2600517	KASSNER VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL FURTHER RESPONSES AND DOCUMENTS TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO BY KRISTINE KASSNER

Tentative Ruling: Hearing continued to Thursday, November 19, 2026 at 8:30 a.m., Department PS2.

This is an action for wrongful termination and various wage-and-hour violations, including under California's Private Attorney General Act (Labor Code §§2699 et seq.). Plaintiff Kristine Kassner alleges that she was employed by defendant Eisenhower Medical Center from September of 2015 to September of 2025, primarily as a nurse. Plaintiff alleges, during the relevant time period, that she was misclassified as an exempt employee. She also alleges that she protested preferential treatment given to members of the 24/7 Care program, a program for donors who gave \$300,000 or more in donations to the Hospital, and that the director of the 24/7 Care program, defendant, Connie Head, retaliated against plaintiff by micromanaging her, berating her, demeaning her, and giving her a negative performance evaluation. The situation continued to escalate until plaintiff's eventual termination.

Plaintiff served two sets of requests for production, RFP Set One and RFP Set Two (and other discovery), on April 30, 2026. After two extensions (and plaintiff's refusal to agree to a third), on June 24, 2026 defendant served responses of objections only.

Plaintiff sent a meet-and-confer letter and the parties discussed the dispute over the phone, during which time defendant's counsel represented that substantive responses would be provided. This was repeated in meet-and-confer letters sent by defendant's counsel on July 2, 2026 and July 30, 2026. The next day, plaintiff filed two motions to compel further responses. The instant motion to compel further responses to RFP Set Two was set for Tuesday, September 15; the motion to compel further responses to RFP Set One was set for Thursday, November 19.

On August 28 defendant served verified supplemental responses to both sets of RFPs and, a few days later, oppositions to both motions. Plaintiff filed replies.

Currently, it appears to the court that a number of RFPs have been supplemented and plaintiff accepts the supplemented responses as sufficient: From Set One, RFP #6, 55, 57, and 71 (RFP #6 concerns commendations and awards received by the plaintiff, while the other three generally concern the defendant's organizational structure). From Set Two, RFP 36-41 (RFPs about classification of employees as exempt or not exempt). To all of the RFPs where plaintiff accepts the supplemented response as sufficient, the supplemental response was that no such documents existed.

Another number of RFPs were not supplemented: These include several RFPs seeking documents about the 24/7 Care Program generally (Set One, RFP #8, 10, 11, 24-26, 43, 44, and 54), documents about classification of employees in the 24/7 Care Program (Set One, RFP #38-41), documents about the termination of the employment of other employees (Set One, RFP #33, 34, 50, and 58), documents about "me-too" complaints (Set One, RFP #74 and 75), documents about plaintiff's benefits and insurance (Set One, RFP #77 and 78), documents about the PAGA class (Set Two, RFP #1-8, 16 and 17), documents about the PAGA class overtime, rest break, and other time records (Set Two, RFP #9-14, 19-21, and 29), and documents about releases and claims to aggrieved employees (Set Two, RFP #42-46). Briefly, these RFPs were responded to with objections only on the initial response and no further response was given when defendant provided supplemental responses.

A third group has been supplemented but plaintiff considers the supplemental responses insufficient: handbooks and personnel policies (Set One, RFP #1, 2, 4 and 5), plaintiff's personnel records (Set One, RFP #3, 7, 9, 12-15, and 76-77), ESI regarding various emails (Set One, RFP #16-23), investigations of plaintiff's own complaints (Set One, RFP #27-32, 35-37, 42, 45-49, 51-53, 56, and 59-62), job descriptions and org charts (Set One, RFP #63-70, 72, 73), job descriptions of aggrieved employees (Set Two, RFP #15), policies regarding breaks, overtime, and so forth (Set Two, RFP #18, 22-28, and 30), and plaintiff's own time records (Set Two RFP #31-35). To these responses defendant promises to provide at least some of the documents requested, either by identifying specific documents to be produced in response to the request, promising to provide documents subject to the objections already made, promising to provide responsive, nonprivileged documents, or by providing additional definitions before promising to provide responses. For the ESI RFPs (Set One, RFP #16-23), defendant offers to meet and confer regarding reasonable ESI terms.

Of the RFPs which have been supplemented and plaintiff contends the responses are insufficient, plaintiff agrees that the RFPs regarding electronically stored information (Set One, RFPs 16-23) require a further meet and confer. A party is required to meet and confer over insufficient responses before bringing a motion to compel further responses (C.C.P. §§2031.310(b)(2), 2016.040), and this applies to supplemental responses, especially when, as here, the supplemental responses are the first substantive responses provided.

Motion to Compel Further Response(s)

C.C.P. §2031.210 allows for three responses to an RFP: a statement that the party will comply, a representation of an inability to comply, or an objection. (C.C.P. §2031.210(a).).

Here, in her reply, plaintiff argues: “Nowhere does Defendant state that compliance will be in whole or in part..., and nowhere does Defendant state whether any responsive documents—whether outside that narrowed date range or otherwise—are being withheld on the basis of the objections it maintains....”

The fix this requires is narrow. Plaintiff does not ask the Court to decide whether Defendant’s boilerplate objections to these fifteen requests are ultimately valid. Plaintiff asks only that Defendant say, for each one, whether it is producing everything responsive or withholding something on the basis of an objection it still maintains—the disclosure Code of Civil Procedure sections 2031.220 and 2031.240, subdivision (b), already require of any response, regardless of the objection’s merit. Moreover, the court notes the instant motions were filed even though plaintiff’s counsel had received a written representation the day before the motion was filed that defendant would be supplementing many of its responses (Rushovich declaration, ¶¶12; Exhibit “I”) and the deadline for filing the motion to compel further responses was still a week away.

Since supplemental responses have been received, the parties are ordered to meet and confer over those responses before the court addresses the merits. The instant hearing is continued to November 19, 2026 at 8:30 a.m. to be heard with the other motion to compel further documents. Additionally, the parties are further ordered to submit supplemental briefing as to both motions describing their efforts to meet and confer over the supplemental responses and to provide new separate statements identifying each RFP still being disputed and the arguments as to why the supplemental response is or is not sufficient. The supplemental briefings, one by each side per motion, are due 15 days prior to the November 19, 2026 date.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603134	RIVCO MECHANICAL SERVICES, INC. VS CLARK	MOTION TO STRIKE COMPLAINT ON CROSS-COMPLAINT OF MATT CLARK... BY RIVCO MECHANICAL SERVICES, INC.

Tentative Ruling: Moot.

Cross Defendant Rivco moves to strike 21 portions from the XC, including the § 16600.1 voidness allegation, the attempted-enforcement and harm allegations, the § 16600.5 damages and fee requests, the wage/expense allegations, the word fraudulent, and the declaratory and injunctive prayer language, arguing they are irrelevant, improper, unsupported, overbroad, or not drawn in conformity with California law and rest on the false premise that Rivco’s protected-information case is really enforcement of paragraph 4 as a bare non-compete.

Motion to Strike

Under Code of Civil Procedure § 436, the court may strike from any pleading any irrelevant, false, or improper matter inserted therein, or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The court reads the challenged pleading as a whole, accepting well-pleaded factual allegations as true and giving the pleading a reasonable interpretation. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) The

grounds for a motion to strike shall appear on the face of the challenged pleading or matter which the court is required to take judicial notice. (C.C.P., § 437.)

The motion to strike is moot based on the court sustaining the operative complaint in its entirety with leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2603134	RIVCO MECHANICAL SERVICES, INC. VS CLARK	DEMURRER ON CROSS-COMPLAINT OF MATT CLARK... BY RIVCO MECHANICAL SERVICES, INC.

Tentative Ruling: Sustained.

Cross Complainant/Defendant Matt Clark is granted leave to file a 1st Amended Cross Complaint within 10 day of this order becoming final.

Plaintiff Rivco Mechanical Services, Inc. employed Defendant Matt Clark. Clark was a longtime trusted managerial-level employee at who while still employed by Rivco decided to leave and join a competitor. Rivco alleges that in the run-up to his departure, Clark secretly engaged in more than 950 file-access events in Rivco's confidential database and Microsoft business systems and accessed, downloaded, photographed, copied, or transmitted confidential files on multiple occasions, including files containing customer agreements, service-visit history, contract renewal dates and terms, customer contact information, pricing information, and other proprietary business data. Rivco alleges Clark also wrongfully removed, concealed, retained, or destroyed the original of the Employee Confidentiality Agreement ("Agreement") he had signed when hired in 2018. After, on November 4, 2025, Clark voluntarily resigned as a Rivco employee, he joined competitor EMCOR Services Mesa Energy ("EMCOR") and has used or threatened to use misappropriated trade secrets and confidential information to unfairly compete with Rivco, causing Rivco to lose customers, contracts, and business opportunities.

On April 7, 2026, Rivco filed this action. On June 11, 2026, it filed its operative First Amended Verified Complaint ("FAC") which pleads four (4) causes of action against Clark: 1) Misappropriation of Trade Secrets (Civ. Code §§ 3426, et seq.); 2) Breach of Contract; 3) Intentional Interference with Contractual Relations; and 4) Violation of Unfair Competition Law (Bus. & Prof. Code § 17200, et. seq.) Rivco seeks damages believed to be in excess of \$1,200,000 along with exemplary damages, attorney's fees, and temporary, preliminary, and permanent injunctive relief.

On July 10, 2026, Clark filed is Cross-Complaint ("XC") alleging three (3) causes of action: 1) Declaratory Relief (Code of Civ. Pro. § 1060); 2) Violation of Bus. & Prof. Code § 16600.5; and 3) Unfair Competition (Bus. & Prof. Code § 17200). Clark alleges the Agreement purports to prohibit him, for one year after termination of his employment for any reason, from contacting or soliciting any business or individual who has been a customer or prospect of Rivco's business, and from calling on, soliciting, or inducing any employee or officer of Rivco to terminate his or her employment (the "Restrictive Covenant") which is void and unenforceable.

Rivco now demurs to all three causes of action in Clark's XC. (C.C.P., § 430.10(e).) It argues the pleading rests on a false premise that Rivco is attempting to enforce paragraph 4 of the Agreement as a non-compete or bare customer non-solicitation covenant when in fact Rivco expressly alleges that it does not seek to enforce that paragraph but instead seeks relief for Clark's misuse of protected information, breach of confidentiality and company-property obligations, and other independently wrongful conduct. Rivco argues the 1st cause of action is

overbroad and duplicative as it seeks to repackage defenses already joined in its FAC. It argue the 2nd cause of action fails because it would impose retroactive civil-liability, damages, and fee consequences for historical execution of an agreement years before Bus. & Prof. Code, § 16600.5 became effective and does not allege any lost opportunity caused by the attempted enforcement of the Agreement. As to the 3rd cause of action, the UCL claim fails because Clark required facts showing injury in fact, lost money or property, causation, restitution, or any private damages, penalty, or fee remedy.

Clark opposes and argues Rivco's demurrer asks the Court to do what a demurrer cannot do: accept as true Rivco's characterization of its own FAC and then reject the well-pleaded allegations of the XC simply because they conflict. On the 1st cause of action, Clark argues he pleads an actual, prospective controversy because the one-year covenant by its terms runs through November 4, 2026; Clark is employed by EMCOR today; and Rivco has placed the covenant before the Court. As to the 2nd cause of action, a cease-and-desist demand, a verified complaint attaching the covenant, and a prayer for \$1,200,000 and an injunction are conduct occurring well after January 1, 2024 and whether Rivco's litigation is an attempt to enforce a void restraint is a question of fact that cannot be resolved on demurrer. Clark asks the Court to overrule the demurrer or grant leave to amend.

Clark opposes on the ground that the motion is its demurrer under another name, that matter that is essential to a cause of action should not be struck, and that most specifications target the very allegations that constitute his three causes of action and the remedies § 16600.5(e) and § 17203 expressly authorize. Clark states he consents to striking the wage-and-expense clause of paragraph 25, the corresponding phrase in paragraph 26, and the Labor Code references in prayer paragraphs 5 and 6." (Oppo., 5:14-18.) Clark asks the Court to deny the balance or grant leave to amend.

In reply in support of the demurrer, Rivco argues that Clark's XC pleads no ultimate fact showing that Rivco is enforcing paragraph 4 as a bare post-employment customer non-solicitation covenant and instead rests on the conclusory in substance label. Rivco otherwise re-argues the points presented in its moving papers.

Demurrer

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; C.C.P., § 430.10, subd. (e).) To sufficiently allege a cause of action, a complaint must allege all the ultimate facts--that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

1st Cause of Action – Declaratory Relief

To qualify for declaratory relief, a party has to demonstrate two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations. (*Jolley v. Chase Home Financing, LLC* (2013) 213 Cal.App.4th 872, 909.) "The [declaratory] relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." (*General of America Ins. Co. v. Lilly* (1968) 258 Cal.App.2d 465, 470.) When an issue can be raised by means of an affirmative defense, a trial judge may therefore dismiss a declaratory relief claim raising the same questions in the cross-complaint. (*C.J.L. Construction, Inc. v. Universal Plumbing* (1993) 18 Cal.App.4th 376, 390-391.)

Here, in his XC, Clark seeks a preemptive declaratory ruling that he is not bound by paragraph 4 of the 2018 Agreement, which he contends is void under Bus. & Prof. Code §§ 16600, 16600.1, and 16600.5. As Rivco argues Clark pleads no facts showing that Rivco is attempting to enforce paragraph 4 as a bare post-employment customer non-solicitation covenant. However, the only allegations are legal conclusions. (See XC, ¶¶ 17-19.) On demurrer, the court assumes the truth of properly pleaded material facts but does not assume the truth of contentions, deductions, or conclusions of law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311.) The XC alleges no concrete facts showing that Rivco demanded Clark cease working for EMCOR or otherwise threatened enforcement of paragraph 4 separate from alleged misappropriation claims.

What remains after disregarding these legal conclusions are the following facts: Rivco attached the Agreement to its verified FAC, filed claims for trade secret misappropriation and breach of contract, and seeks damages and injunctive relief. However, Rivco expressly disclaims enforcement of paragraph 4 as a standalone noncompete in its verified FAC at ¶¶ 19 and 55. binding admissions that narrow the scope of Rivco's case. Rivco expressly disclaims seeking to enforce paragraph 4 as a standalone non-compete restraint and limits its claims to alleged misuse or threatened misuse of protected information, breach of confidentiality obligations, breach of company-property obligations, and other independently wrongful conduct. (FAC. ¶ 55.) These disclaimers are part of Rivco's own verified complaint and establish the theory and scope of its claims. Clark cannot manufacture an actual controversy over paragraph 4 enforcement by alleging the legal conclusion that Rivco's trade secret claims are in substance non-compete enforcement when Rivco has expressly narrowed its theory away from that characterization.

Rivco also correctly contends that even if an actual controversy exists on the present allegations, declaratory relief is unnecessary and improper under C.C.P., § 1061 because all issues concerning paragraph 4 will be necessarily resolved in the main action. Under C.C.P., § 1061 the court may refuse to exercise the power to grant declaratory relief where such relief is not necessary or proper at the time under all of the circumstances. (*California Ins. Guarantee Assn. v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623-1624.)

Finally, Rivco overbreadth objections to the requested declarations also merit attention, though they do not defeat the entire first cause of action. Even if some requested language sweeps too broadly, that attacks the scope of the declaration or prayer, not the existence of an actual controversy concerning paragraph 4 itself. A demurrer is not the proper vehicle to attack only part of a cause of action, and overbreadth in requested declaratory language is ordinarily addressed by motion to strike or narrowing at judgment rather than by sustaining a demurrer to the entire cause of action. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047.) SUSTAINED

2nd Cause of Action – Violation of Bus. & Prof. Code § 16600.5

Section 16600 of the Business and Professions Code provides that “[e]xcept as provided in this chapter, every contract by which anyone is restrained from engaging in a lawful profession, trade, or business of any kind is to that extent void.” (*Id.*, subd. (a).) This statute did not set forth a private right of action for damages or civil penalties, but in 2023 the Legislature created a new cause of action to protect employees from noncompete agreements: “An employer that enters into a contract that is void under this chapter[, which includes Business and Professions Code section 16600,] or attempts to enforce a contract that is void under this chapter commits a civil violation” (*id.*, § 16600.5, subd. (d), italics added, enacted by Stats. 2023, ch. 157, § 2), and “[a]n employee ... may bring a private action to enforce this chapter” (§ 16600.5, subd. (e)(1)). Business and Professions Code section 16600.5, subdivision (d) specifically makes the entry of a contract with the void term a civil violation.

Here, Rivco first challenges this claim on the ground the statute does not apply retroactively to the 2018 execution of the agreement. Section 16600.5 became effective on January 1, 2024 and the Agreement was executed in May 2018. Therefore, the entered into prong of section 16600.5, subdivision (d), targets the completed historical act of contract formation. Indeed, Clark concedes the claim is not based on execution of the agreement. (Oppo., 2:3.)

Next, it argues the Clark has failed to allege Rivco is attempting to enforce paragraph 4. Indeed, the allegations state legal conclusions rather than ultimate facts. The XC alleges that Rivco attempts to enforce and leverages the restraint, but alleges no facts showing what enforcement conduct occurred separate from the filing of trade secret misappropriation claims. (XC ¶¶ 14, 15.) Moreover, the FAC expressly states that Rivco does not seek to enforce paragraph 4 as a bare post-employment customer non-solicitation covenant independent of misuse or threatened misuse of protected information. (Comp. ¶ 55.) While the court may not accept that statement as true for purposes of resolving disputed facts, Clark must still plead facts showing conduct that constitutes attempted enforcement, such as demands to cease competition based on paragraph 4, threats to enforce the restraint separate from trade secret protection, or other conduct demonstrating restraint of employment or business activity independent of information misuse.

SUSTAINED

3rd Cause of Action – Unfair Competition (Bus. & Prof. Code § 17200)

“The UCL permits civil recovery for any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising . . . Because Business and Professions Code section 17200 is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent. . . By defining ‘unfair competition’ to include any unlawful act or practice, the UCL permits violations of other laws to be treated as independently actionable as unfair competition. [A]n ‘unfair’ business practice occurs when that practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers. An unfair business practice also means the public policy which is a predicate to the action must be tethered to specific constitutional, statutory or regulatory provisions. A fraudulent practice under the UCL require[s] only a showing that members of the public are likely to be deceived and can be shown even without allegations of actual deception, reasonable reliance and damage.” (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 830-31 [cleaned up].)

Here, Rivco argues this cause of action fails because Clark fails to plead any standing, no notice-caused lost money or property, and no restitutionary interest. As to standing, as Rivco argues private UCL plaintiff must plead injury in fact and lost money or property as a result of the alleged unfair competition. (Bus. & Prof. Code, § 17204; *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th

310, 320–21.) Clark alleges defense fees and costs incurred in this litigation and expenditures incurred as a consequence of Rivco’s conduct. (XC ¶¶ 15, 25.) These allegations present a standing problem. Litigation costs incurred to prosecute the UCL action itself are not lost money or property for standing purposes, they are the means of seeking a remedy, not an independent injury caused by the unfair competition. (*California Medical Assn. v. Aetna Health of California Inc.* (2023) 14 Cal.5th 1075, 1082.)

The claim depends on alleged violations of sections 16600, 16600.1, and 16600.5. (XC ¶ 25.) For the reasons stated in the analysis of the second cause of action, section 16600.5 presents problems concerning retroactive application and lack of factual pleading of attempted enforcement.

Moreover, UCL remedies are limited to restitution and injunctive relief. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1144.) Restitution requires money or property that the defendant acquired from the plaintiff. Clark has not alleged any money or property that Rivco acquired from him through the alleged unfair practices. Defense fees paid to Clark’s own attorneys are not funds or property Rivco acquired. SUSTAINED

Leave to Amend

The real issue is leave to amend. Cross-Defendants insist that leave to amend is not appropriate. Leave to amend is properly allowed under ordinary circumstances when, as here, the demurrer is the first challenge to the pleadings. “If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747; see also *King v. Mortimer* (1948) 83 Cal.App.2d 153, 158 [on demurrer to original complaint, “unless it shows on its face that it is incapable of amendment, denial of leave to amend constituted an abuse of discretion, [Citations] irrespective of whether leave to amend is requested or not”].)

As this is the first challenge to the pleading, and Clark may have additional facts, the court will grant one additional opportunity for leave to amend.